

	2025-01495109	Continued to 07/31/2026 at 9:00 a.m. in Department CX101.
10	Her vs. Avon Protection Systems, Inc. 2024-01392475	Plaintiff’s Motion for Approval of Paga Settlement Plaintiff’s motion for preliminary approval of class action settlement is CONTINUED to July 24, 2026 at 9:00 a.m. in Department CX101 to permit the parties to respond to the following items of concern. Any supplemental briefing shall be filed on or before July 14, 2026. If a revised settlement agreement and/or class notice is submitted, a redline showing all changes, deletions and additions must be submitted as well. <i>As to the Settlement:</i> 1. The class period pled in the operative Second Amended Complaint (2AC) begins four years prior to filing, or April 8, 2020. The class period in the agreement begins on January 19, 2022. What is the reason for this discrepancy? Does this settlement provide anything for class members who worked between April 8, 2020 and January 19, 2022? The UCL-based statute of limitations has run on their claims by now. 2. The pre-filing letter to the LWDA was sent on April 8, 2024. The PAGA period in the agreement begins on July 12, 2023. What is the reason for this discrepancy? Does this settlement provide any penalties for Labor Code violations occurring between April 8, 2023 and July 12, 2023? 3. There are separate aggrieved employee groups for employees of Avon and employees of Volt who worked at Avon’s facility. The settlement class, however, consists exclusively of Avon employees. Why are Volt employees excluded from the settlement class when they have always been part of the class as pled, and when the settlement includes them as aggrieved employees? 4. Please provide copies of Plaintiff’s pre-filing letter to the LWDA and all amended letters. 5. Are there any other actions, whether individual, class, or PAGA (including in the pre-filing LWDA stage) that may be affected by this settlement?

		6. Plaintiff was a Volt employee who worked at Avon’s facility. Is he typical of and adequate to represent Avon’s direct employees? 7. The 2AC, Plaintiff’s declaration, and the proposed class notice all describe Plaintiff as a current employee. On what basis can he bring, and settle, a waiting time claim? “A class representative who does not have a claim against the defendants cannot satisfy the typicality requirement.” (<i>Martinez v. Joe’s Crab Shack Holdings</i> (2014) 231 Cal.App.4th 362, 376.) 8. Counsel states that Defendants turned over a representative sample of the class’s time and pay records. How large a sample? E.g., 10%? 9. Did counsel interview anyone other than Plaintiff to value the non-record claims? 10. Counsel’s declaration mentions an expert retained to value the case. Whom? Please provide a CV. 11. Does the UCL claim have independent value, or does it simply extend the limitations period? 12. The class released claims (defined at ¶ 31 of the agreement) include PAGA claims. Please delete the reference to PAGA claims, as PAGA claims are released by aggrieved employees and the State, not class members. 13. The class released claims are based on the facts set forth in the operative complaint and in Plaintiff’s April 8, 2024 letter to the LWDA. The PAGA released claims (defined at ¶ 32 of the agreement) are based on the facts set forth in the operative complaint and Plaintiff’s November 24, 2025 amended letter to the LWDA. Why are the two sets of released claims based on different LWDA letters? 14. The agreement appears to contain two separate class releases and two separate PAGA releases. (Compare ¶¶ 52-53 and ¶¶ 63-64 of the agreement.) Are these releases meant to differ materially? If so, what is the difference, and which controls? If not, why are there two sets of releases?
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As to the Notice:

1.

Page 2 of the notice briefly summarizes the options Avon employees have. Assuming Volt employees are solely aggrieved employees, this summary should briefly explain that they lack the rights associated with class members.

2.

On page 4 of the notice, please delete the description of the mediator as “experienced, neutral”. Because the notice is Court-ordered, there is a risk this description could be considered an official endorsement by the Court.

3.

Does notice need to be given in any languages other than English and Spanish?

4.

If any changes are made to the settlement agreement, please make corresponding changes to the notice.

5.

The font size in the actual notice may not be smaller than the font size in the proposed notice provided to the Court.